
This act summary is provided for the convenience of the public and members of the General Assembly. It is intended to provide a general summary of the act and may not be exhaustive. It has been prepared by the staff of the Office of Legislative Counsel without input from members of the General Assembly. It is not intended to aid in the interpretation of legislation or to serve as a source of legislative intent.

Act No. 130 (H.542). An act relating to testing of schools in Vermont for polychlorinated biphenyls

Subjects: Education; conservation and development; testing; polychlorinated biphenyls

This act extends from July 1, 2027, to August 1, 2035, the deadline by which public schools or recognized independent schools constructed or renovated prior to 1980 are required to test for polychlorinated biphenyls (PCBs) in indoor air. The act also creates the School Polychlorinated Biphenyl Program Fund to provide grants from the Agency of Natural Resources (ANR) for the investigation, mitigation, and remediation of PCBs in schools in Vermont. The Fund would consist of any litigation recovery by the State for the costs of addressing PCB contamination in schools and reimbursements from a school for work related to a grant issued by the State for PCB investigation, mitigation, and remediation when that school recovers money from litigation or other awards. In addition, the act amends the School Construction Aid Program to provide that in order for the Secretary of Education to approve the preliminary application for school construction aid, an applicant school district applying for aid for a school building that was constructed or renovated before 1980 shall demonstrate that indoor air quality testing for PCBs has been conducted at the school. Last, the act requires ANR, on or before January 15, 2027, to submit to the General Assembly an estimate of the additional cost to the State to complete testing, mitigation, and remediation for PCBs at public schools and approved and recognized independent schools and a plan to fund the costs estimated necessary to complete testing, mitigation, and remediation.

Multiple effective dates, beginning on June 15, 2026